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Judgment Sheet
IN THE LAHORE HIGH COURT,
RAWALPINDI BENCH, RAWALPINDI.
JUDICIAL DEPARTMENT

Crl. Appeal No.433/2025
(Said Rasool vs. The State and another)

Crl. Appeal No.434/2025
(Muhammad Waqas vs. The State and another)

JUDGMENT

Date of hearing:	11.03.2026
Appellants by:	M/s. Sheikh Waqar Azeem, Ansar Nawaz Mirza and Ch. Muhammad Akhtar, Advocates.
State by:	Mr. Naveed Ahmad Warraich, Deputy Prosecutor General along with Zubair, Inspector.
Complainant by	Raja Muhammad Farooq, Advocate.

TARIQ MAHMOOD BAJWA, J.:- Appellants
(Said Rasool and Muhammad Waqas) have been tried by the trial Court in case FIR No.497 dated 31.08.2023 in offence under Sections 302, 324, 427, 148, 149 PPC, Police Station Hazro, District Attock, and were convicted and sentenced vide judgement dated 15.04.2025 as under:-

Said Rasool (appellant)

- Under Section 302(b) PPC, sentenced to life imprisonment with direction to pay Rs.2,00,000/- each as compensation to the legal heirs of the deceased persons namely Muhammad Shahzad, Afzal alias Baboo, Hamraz, Ishfaq and Bilal in terms of Section 544-A Cr.P.C. to

be recovered as arrears of land revenue and in default of payment to further undergo simple imprisonment for six months.

- Under Section 324 PPC, sentenced to rigorous imprisonment for six years with fine of Rs.1,00,000/- to be recovered as arrears of land revenue and in case of default to further undergo simple imprisonment for six months.
- Under Section 427 PPC, sentenced to rigorous imprisonment for two years for causing damage to the car No.FG.524 with fine of Rs.50,000/- and in case of default to further undergo simple imprisonment for six months.

Waqas Ahmad (appellant)

- Under Section 302(b) PPC, sentenced to life imprisonment with direction to pay Rs.2,00,000/- each as compensation to the legal heirs of the deceased persons namely Muhammad Shahzad, Afzal alias Baboo, Hamraz, Ishfaq and Bilal in terms of Section 544-A Cr.P.C. to be recovered as arrears of land revenue and in default of payment to further undergo simple imprisonment for six months.
- Under Section 324 PPC, sentenced to rigorous imprisonment for six years with fine of Rs.1,00,000/- to be recovered as arrears of land revenue and in case of default to further undergo simple imprisonment for six months.
- Under Section 427 PPC, sentenced to rigorous imprisonment for two years for causing damage to the car No.FG.524 with fine of Rs.50,000/- and in case of default to further undergo simple imprisonment for six months.
- The above sentences awarded to both convicts were ordered to run concurrently. Benefit of section 382-B Cr.P.C. was extended to the convicts.

2. Appellants have filed their respective Criminal Appeals against their convictions, which are being decided through this single judgment.

3. The prosecution's version of the case, as mentioned in para No.2 of impugned judgment is reproduced as follows:

“The gist of allegation as narrated in the FIR is that on 31.08.2023, complainant Zahid alongwith Tanveer Ahmed on one motorcycle whereas Adnan and Sohail on other motorcycle, whereas Muhammad Shahzad, Afzaal, Hamraz, Ishfaq and Bilal through private vehicle No. FG-524 went to Jatial for seeing the match. After the match ended, complainant party were coming back to their home and when complainant party reached near old

Motorway office Jatial at about 06:50 PM, where the vehicle No. FG-524 was ahead of use whereas both the motorcycles were behind the car at a distance of 25/30 feet. In the meantime, accused persons namely Imran, Saftain and Babar armed with Kalashnikov were standing on the left side of the road whereas Shahzaib and Faizan armed with Kalashnikov were standing on the left side in front of them, Pervaiz armed with pistol Three unknown accused persons, out of which one armed with 12 bore riffle, short heighted and dark in complexion and two armed with 30 bore pistol, one tall heighted, light beard and wheatish complexion and the other with medium height and dark سانولا complexion aging between 35/40 years They all started making indiscriminate firing upon car of Shahzad and others. Due to this indiscriminate firing, Shahzad and other got firing and a passerby child got injured due to this firing One of the accused holding 12 bore gun also got injured due to this indiscriminate firing and the remaining accused persons boarded him in a white coloured alto car and fled away from the spot and on the alto car and two motorcycles 125. After the occurrence, complainant party shifted all the injured persons to the hospital Shahzad, Hamraz and Afzaal succumbed to the injuries and injured Bilal and Ishfaq were referred to Rawalpindi for medical treatment after initial treatment who passed away on the way to the Rawalpindi, who were brought back to THQ, Hospital Hazro. Thereafter, complainant got recorded his statement before the Investigating Officer which is Exh.PVV, signed by him."

4. Heard. Record perused.

5. No doubt, the occurrence is deeply tragic, as five precious human lives were lost and an innocent child sustained serious injuries. However, the gravity of the incident, by itself, cannot be made a substitute for proof. The Court is duty-bound to confine its determination strictly to the question of the involvement of the present appellants on the basis of the evidence available on record. It is a settled principle of law that howsoever heinous the offence may be, conviction cannot be recorded unless the prosecution proves its case against the accused beyond reasonable doubt

through reliable, cogent, and confidence-inspiring evidence. Emotional considerations or the severity of the occurrence cannot be allowed to override the requirements of a fair trial and due process. It is also clarified that any observations made herein are confined solely to the case of the present appellants and shall have no bearing whatsoever on the case of any co-accused, whose liability is to be determined independently in accordance with law.

6. A careful perusal of the record reveals that both the appellants were not nominated in the crime report at the earliest point of time. In the complainant's statement (Exh.PVV), on the basis of which the FIR (Exh.PQ) was registered, no description whatsoever of the unknown assailants, such as their color, complexion, height, or approximate age, was provided. This omission is of considerable significance, as it indicates that the identity of the accused persons was not known to the complainant at the time of occurrence. The prosecution has attempted to connect appellant Muhammad Waqas with the occurrence through an alleged rented vehicle bearing registration No.AUJ-918. It is claimed that, on spy information, the Investigating Officer traced the said vehicle to Aitmad Motors and Rent-a-Car, Hassanabdal, where Nauman Ali Khan (PW-8) allegedly disclosed that the vehicle had been rented out to Waqas Ahmed (appellant), who failed to return it. However, this piece of evidence completely collapses when examined in court. The said Nauman Ali Khan (PW-8), when produced before the Court, categorically failed to support the prosecution version. He did not depose anything regarding the alleged hiring of the vehicle by the appellant and was declared hostile. Even during cross-examination by the learned Prosecutor, nothing favourable to the prosecution could be elicited, and he specifically denied the suggestion that the vehicle in question was given to Muhammad Waqas. Thus, the very foundation of the prosecution's attempt to connect Muhammad Waqas (appellant) with the crime through the alleged vehicle stands demolished. There remains no independent or reliable evidence to establish that the said vehicle was ever in possession of

the appellant. Similarly, appellant Said Rasool appears to have been roped in merely on suspicion, without any substantive or corroborative evidence linking him to the occurrence. It is a settled principle of law that suspicion, however strong, cannot take the place of proof. In these circumstances, the non-nomination of the appellants in the FIR, absence of any description of the assailants, failure of the star witness to support the prosecution case, and the arrest of one of the appellants on mere suspicion collectively render the involvement of appellants highly doubtful.

7. The ocular account in the present case rests upon the testimonies of Zahid (PW-16) and Sohail (PW-17). A careful scrutiny of the statement of the complainant, Zahid (PW-16), reveals a significant and material departure from his earlier version. During his deposition before the Court, he attempted to introduce detailed descriptions of the previously unknown assailants by stating that: *“Three unknown accused persons, out of which one armed with a 12-bore rifle, short in height and dark in complexion, and two armed with .30-bore pistols, one tall, having a light beard and wheatish complexion, and the other of medium height with dark (سانولا) complexion, aged between 35 to 40 years.”* However, when confronted with this portion, the witness failed to provide any plausible explanation for such an improvement. Notably, no such description of the assailants finds mention in his earlier statement (Exh.PVV) or in the FIR (Exh.PQ), which constitutes the foundational document of the prosecution case. The introduction of these specific features at the trial stage, therefore, amounts to a clear and deliberate improvement. It is well-settled that improvements of this nature, particularly when they go to the root of identification, are to be viewed with great caution. Such embellishments, made after due deliberation, reflect a dishonest attempt to strengthen a weak case and are rightly categorized as afterthoughts. Consequently, this material discrepancy strikes at the credibility of the complainant’s testimony and renders his account regarding the involvement of the appellants highly doubtful and unworthy of credence. Reliance is placed on case law reported

as “Naveed Asghar and 2 others versus The State” (PLD 2021 Supreme Court 600), “Rafaqat Ali versus The State” (2022 Supreme Court 1107) and “Hazaray Khan and others versus The state and others” (2024 SCMR 2042).

8. It is the case of the prosecution that the PWs had disclosed the contours and descriptions of the unknown assailants in their statements recorded under section 161 Cr.P.C. However, this stance is inherently doubtful when tested in the surrounding circumstances. Per claim of prosecution, the PWs were present at the hospital at the time when the complainant’s statement was recorded for the registration of the FIR, the earliest version of the occurrence. If, at that very moment, the PWs were in possession of any description or identifying features of the unknown accused, it was but natural and expected that such details would have been immediately conveyed and incorporated in the FIR. The conspicuous omission of any such description in the FIR, despite the presence of the PWs, strongly suggests that no such details were available at that time. The subsequent introduction of descriptive features in the statements under section 161 Cr.P.C., therefore, appears to be an afterthought, developed after due deliberation and consultation. This unexplained improvement, particularly on a crucial aspect like identification of unknown assailants, renders the later-provided descriptions unreliable and devoid of evidentiary worth.

9. So far as the identity of the appellants through identification parade proceedings is concerned, the record reveals a serious legal infirmity. The applications moved for fixation of the identification parade are very much part of the record, and a bare perusal thereof shows that they contain complete particulars of the appellants, including their names, parentage, and addresses. In such circumstances, the sanctity and evidentiary value of the identification parade stand gravely compromised. It is a settled principle of law that the purpose of a test identification parade is to ascertain whether a

witness, who had no prior acquaintance with the accused, can identify him without any aid or suggestion. However, when the identity of the accused is already disclosed or becomes known prior to the parade, the entire exercise becomes a mere formality and loses its legal worth. The presence of full particulars of the appellants in the applications creates a strong likelihood that the witnesses had prior knowledge of their identity before the parade was conducted. This circumstance renders the identification proceedings tainted, doubtful, and not in accordance with law. Consequently, no reliance can safely be placed upon such identification, as it fails to inspire confidence and does not meet the standard required for sustaining a conviction. Reliance is placed on case law reported as “Sana Ullah versus The State” (2024 P.Cr.LJ 1623).

10. Another significant aspect of the case, which seriously dents the credibility of the identification proceedings, pertains to the distinctive physical feature of the appellant, Said Rasool. It has come on record that he bears a prominent healed cut mark on his right cheek, an identifying feature that is not only conspicuous but also easily noticeable at first glance. The learned Magistrate (PW-19), during cross-examination, candidly admitted that “*it is correct that accused Said Rasool is present in the court and on right cheek of the accused there is a prominent mark of healed cut. I did not ask any of the dummies to conceal their prominent mark of identification before ID proceedings.*” This admission strikes at the very root of the fairness and sanctity of the identification parade. It is a settled principle that where an accused possesses a distinctive or striking feature, necessary precautions must be taken to neutralize its effect, either by concealing such feature or by ensuring that similar marks are present on the dummies. Failure to adopt such safeguards renders the identification proceedings inherently suggestive and unreliable. In the present case, no such precaution was taken. The appellant, having a unique and prominent mark, stood out from the rest of the dummies, making it highly probable that the witnesses identified him not from independent recollection of the occurrence, but on account of this

distinguishing feature. Such an identification, tainted by suggestion, loses its evidentiary value and cannot be safely relied upon for sustaining conviction. Reliance is placed on case law reported as “Allah Dad versus The State” (PLD 1965 (W.P) Lahore 288) and “Nigah Ali Shah and another versus The State” (1975 P Cr. LJ 38).

11. Next significant aspect of the matter is the testimony of Zahid, the complainant (PW-16). During his deposition before the Court, he stated that on 04.10.2023, he, along with Tanveer and Sohail, visited District Jail, Attock, where an identification parade was conducted under the supervision of the learned Area Magistrate. During these proceedings, the witness allegedly identified an accused of short stature and claimed that he was the same person who had fired with a .30-bore pistol at Shahzad and others during the occurrence. However, it is of considerable importance that the witness did not specifically name or clearly attribute the identity of the said accused as Said Rasool, appellant. This omission is not a mere procedural lapse; rather, it strikes at the very root of the prosecution’s case. An identification which remains vague and lacks definite attribution cannot be accorded evidentiary value. Identification of an unknown accused during police investigation is undoubtedly relevant; however, identification during judicial proceedings carries greater evidentiary weight. Unlike the former, which is merely a step in the investigative process, identification made before the Court constitutes substantive evidence and, therefore, assumes paramount importance in determining the guilt or innocence of the accused.

12. It is established proposition of law that Test Identification Parade is of no avail to the prosecution case when description/features of the accused were not given in the contents of the FIR. In case law reported as “Sabir Ali alias Fauji v. The State” (2011 SCMR 563) it was observed by the prestigious Supreme Court of Pakistan as infra:

“6. ...It is also settled principle that identification test is of no value when description/feature of accused is not given in the contents of the FIR. It appears from the record that accused persons are complete

strangers to the prosecution witnesses, therefore, in the absence of description in the contents of FIR, the benefit of doubt be given to the accused persons coupled with the fact that according to the prosecution witnesses they had opportunity to see them on the day of incident in moonlight...”

TIP proceedings (Exh.PMMM and Exh.POOO) are silent qua the description of facial features, complexion, exact heights, ages and other resembling features of the unknown accused persons with dummies which seriously diminished the evidentiary value of such identification parade. Reliance can be placed on case law reported as “Mian Sohail Ahmed and others v. The State and others” (2019 SCMR 956), wherein it was held that:-

“The Test Identification Parade (“TIP”) (Ex/PN) which was conducted by the Special Judicial Magistrate (PW-13) on 13.6.2006 is fraught with several infirmities diminishing its probative and evidentiary value. Brief description of the two unknown persons (later on identified as the appellants) in the first information report mentions their height, bodily size and colour of the skin. TIP proceedings are silent regarding the description of the unknown accused given by the complainant in the report. TIP can only commence, once suspects matching the description in the crime report or in the statements of the witnesses under section 161, Cr.P.C. have been arrested. Matching the description in the first information report is the starting point towards identification of the unknown accused. It is, therefore, uncertain how the appellants were hurred and lined-up for the identification parade without the Magistrate first matching the description given by the complainant. Selection of the suspects, without any correlation with description of the accused in the first information report, raises doubts and makes the identification proceedings unsafe and doubtful rendering the identification evidence inconsequential.”

13. The prosecution has further relied upon the alleged recoveries of weapons from the appellants, i.e., a pistol from Waqas Ahmad, appellant, vide recovery memo (Exh.PSS), and a .30-bore pistol from Said Rasool, appellant, vide recovery memo (Exh.PTT). However, a careful evaluation of this evidence reveals that both recoveries were effected from open and accessible places, which were not in the exclusive possession of the appellants. Haris Umair, SI (PW-15) during cross examination admitted that “*the place of recovery is an open place accessible to all.*” Such recoveries, by their very nature, carry little evidentiary value and are inherently susceptible to doubt and manipulation. More importantly, the forensic

evidence completely negates the prosecution's claim. As per the PFSA report (Exh.PRRR), due to differences in individual characteristics, the crime empties (items C2, C7 to C9, and C11) could not have been fired from the alleged recovered pistols (items P1 & P2). It is a well-settled principle that where the recovered weapon is not forensically connected with the occurrence, such recovery becomes inconsequential and cannot be relied upon to corroborate the prosecution case. In the present case, not only are the recoveries doubtful due to the place and manner of their alleged recovery, but they also stand discredited by the scientific evidence. Consequently, the alleged recoveries lose all probative value and fail to provide any incriminating support against the appellants. Even otherwise, recovery is a corroborative piece of evidence. Reliance is placed upon the decision of the Supreme Court of Pakistan in case law reported as "NAVEED ASGHAR and 2 others vs. The STATE" (PLD 2021 SC 600) wherein it was held as under:-

"Recovery of weapon of offence is only a corroborative piece of evidence; and in absence of substantive evidence, it is not considered sufficient to hold the accused person guilty of the offence charged. When substantive evidence fails to connect the accused person with the commission of offence or is disbelieved, corroborative evidence is of no help to the prosecution as the corroborative evidence cannot by itself prove the prosecution case."

Further reliance can be placed on "HAYAT ULLAH vs. The STATE" (2018 SCMR 2092), "NASIR JAVAID and another vs. The STATE" (2016 SCMR 1144), "MUHAMMAD NAWAZ and others vs. The STATE and others" (2016 SCMR 267) and "MUHAMMAD AFZAL alias ABDULLAH and others vs. The STATE and others" (2009 SCMR 436).

14. So far as the medical evidence is concerned, it only confirms the cause of death; weapon used in the commission of offence and locale of injuries but cannot implicate the accused in the commission of the crime. It was authoritatively held by the Supreme Court of Pakistan after

considering a chain of judgments in case law reported “MUHAMMAD MANSHA vs. The STATE” (2018 SCMR 772) that:-

“It has been declared by this Court in various judgments that the medical evidence neither pin point the accused nor establish the identity of the accused, and at the most can depict the locale of injury, duration, weapon used etc. and medical evidence can never be considered to be a corroborative piece of evidence and at the most can be considered a supporting evidence only to the extent of specification of seat of injuries, the weapon used, duration, the cause of death etc”

15. The prosecution has alleged that motive behind the occurrence was a previous enmity. However, there is nothing on record to suggest that the appellants had any direct animosity, prior dispute, or ill-will with the complainant or the deceased party. It was held in case law reported as “Muhammad Hassan and another versus The State and others” (2024 SCMR 1427) as under:-

“It would be highly relevant to mention here that the motive is a double-edged weapon, which can be used either way and by either side i.e. for real or falsa involvement. Reference in this regard may be made to the cases of Noor Elah v Zafarul Haque (PLD 1976 SC 557); Allah Bakhsh v. The State (PLD 1978 SC 171) Khadim Hussain v. The State (2010 SCMR 1090); Tahir Khan v. The State (2011 SCMR 646); Tariq v. The State (2017 SCMR 1672) and Muhammad Ashraf alias Acchu v. The State (2019 SCMR 652). So, the motive asserted by the prosecution indicates that there was an enmity of murder between the parties and the said motive, being double edge, could be the reason for the false implication of the petitioner....”

16. Based on the facts and circumstances presented, it is evident that the prosecution has failed to provide compelling and coherent evidence to establish the involvement of appellants in the alleged crime. It is a cardinal principle of the criminal justice system that for extending the benefit of the doubt, there doesn't need to be several circumstances, rather one reasonable doubt is sufficient to acquit an accused, not as a matter of grace but as of right. Reliance is placed on case law reported as “MUHAMAMD HASSAN and another vs. The STATE and others” (2024 SCMR 1427), “NAJAF ALI SHAH vs. The STATE” (2021 SCMR 736) and

“The State through P.G. Sindh and others vs. AHMED OMAR SHEIKH and others” (2021 SCMR 873).

17. For the foregoing reasons, this appeal is allowed, conviction and sentences of the appellants (**Said Rasool and Muhammad Waqas**) awarded by the trial Court through impugned judgment are hereby set-aside. They are acquitted of the charges and directed to be released forthwith, if not required in any other case.

18. Before signing it off, at the cost of repetition, it is clarified that the above observations are confined strictly to the the present appellants and shall not, in any manner, influence or prejudice the trial of the co-accused, whose case shall be decided independently on the basis of evidence that may be produced before the learned trial Court.

(TARIQ MAHMOOD BAJWA)
JUDGE

Approved for reporting

Judge